

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

SAMSUNG ELECTRONICS AMERICA, INC., *Complainant*

v.

SM LINE CORPORATION, *Respondent*.

DOCKET NO. 23-01

Served: January 31, 2024

ORDER OF: Alex M. CHINTELLA, *Administrative Law Judge*.

ORDER GRANTING COMPLAINANT'S AND RESPONDENT'S MOTIONS FOR CONFIDENTIAL TREATMENT

On November 14, 2023, Respondent SM Line Corporation filed a motion under 46 C.F.R. § 502.5(b) seeking confidential treatment of portions of its renewed motion for leave to file a third-party complaint. In support of its motion, Respondent states that the agreements attached to the motion for leave as Exhibits A-D, Exhibit F, and Appendix A are subject to confidentiality provisions that prevent the disclosure of their terms, including the identity of the parties to the agreements. The agreements also contain information regarding contractual rates, disclosure of which would damage the commercial interests of the parties. Complainant did not file an opposition to the motion.

On November 21, 2023, Complainant Samsung Electronics America, Inc. filed a motion for confidential treatment of its opposition to SM Line's renewed motion on the basis that the opposition discussed the same commercially sensitive information as the motion. The parties have shown good cause for confidential treatment by demonstrating that the motion for leave and exhibits, and the opposition, contain commercial information pursuant to 46 C.F.R. § 502.141. Respondent's motion for confidential treatment did not comply with 46 C.F.R. § 502.71(a) because it did not state what attempt was made to confer with the opposing party to determine whether the motion was opposed.

For the foregoing reasons, Respondent's motion for confidential treatment is **GRANTED**; Complainant's motion for confidential treatment is also **GRANTED**. The Office of the Secretary is requested to treat the designated information in Respondent's motion for leave to file a third-party complaint and Complainant's opposition as confidential.

Alex Michael
Chintella

Digitally signed by Alex
Michael Chintella
Date: 2024.01.31
14:14:36 -05'00'

Alex M. Chintella
Administrative Law Judge